

SENATE No. 1304

The Commonwealth of Massachusetts

PRESENTED BY:

Lydia Edwards

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act promoting infant friendly workplaces.

PETITION OF:

NAME:

Lydia Edwards

DISTRICT/ADDRESS:

Third Suffolk

SENATE No. 1304

By Ms. Edwards, a petition (accompanied by bill, Senate, No. 1304) of Lydia Edwards for legislation to promote infant friendly workplaces by allowing guardians to bring infants aged six weeks to six months to the workplace. Labor and Workforce Development.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act promoting infant friendly workplaces.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 175M of the General Laws is hereby amended by inserting the
2 following definition:-

3 “Infant-Friendly Workplace”, means a workplace that allows eligible guardians to bring
4 their children to their place of employment under policies and guidelines established under this
5 chapter.

6 “Eligible guardian” , means a person over the age of 18 who is either the natural parent or
7 has been appointed by a court or or otherwise has the legal authority to make decisions relevant
8 to the personal interests of a child between ages six-weeks to six-months.

9 “Eligible employer”, a person or entity engaged in a specific business, industry,
10 profession, trade, or other enterprise in the Commonwealth, whether for profit or not for profit,
11 deemed eligible for approval to receive grants through the federal and/or state government to
12 fund a child care program established by the employer.

SECTION 2. Chapter 175M of the General Laws is hereby amended by inserting the following in section:-

Section 11. Infant Friendly Workplace Programs

(a) There shall be established a program called the Infant-Friendly Workplace Program to support working guardians by allowing them to bring infants aged six weeks to six months to the workplace while performing job duties, promoting parent-infant bonding, mental health, and workforce retention. Though voluntary on the part of the employer and employee, employers are encouraged to establish and maintain infant-friendly workplace programs. Eligible employers may apply for the program in addition to any funds provided to the state through the federal Maternal and Child Health Block grant to assist with creating the private environment. The program may be funded through the state budget, dedicated grants, or new allocations under Chapter 175M. Grants may be used for equipment, training, or establishing infant-friendly environments. The program shall not replace Paid Family and Medical Leave entitlements but shall serve as an additional option for parents transitioning back to work

(b) Parents or legal guardians employed in Massachusetts who are returning to work after utilizing Paid Family and Medical Leave for childbirth, adoption, or fostering are eligible for the Infant-Friendly workplace program.

(b) Employers participating in this program shall include the following: (i) submission of an Infant Friendly Workplace Program grant application; (ii) apply and become designated as an Infant Friendly Workplace; (iii) training and resources for employees to facilitate a productive and safe environment for infants and coworkers; (vi) establish reasonable limits on participation to ensure workplace productivity and safety; (v) a location suitable for the care of children 6

35 weeks to 6 months; (vi) regulations for eligible guardians participating in the program to
36 comply with current Massachusetts statutes and regulations governing child immunizations with
37 respect to those immunizations recommended for infants six weeks to six months of age; and
38 (vii) an option for flexible work schedules or accommodations for new parents returning to work
39 with infants. Employers may provide the option to include a specified number of remote working
40 days for purposes of working parent childcare when other options are limited.

41 (c) Employers participating in programs established under section (a) of this chapter may
42 use funding to include, but are not limited to:- providing designated safe spaces for infants and
43 nursing parents, including private areas for breastfeeding or expressing milk; and hiring
44 domestic workers to assist in the care for the child while the guardian engages in work not
45 suitable for child exposure;

46 (d) Employers participating in programs established under section (a) of this chapter may
47 not use funding for the purchase and improvement of land; construction or permanent
48 improvement of buildings or purchase of major medical equipment; matching other federal
49 grants; or providing funds for research or training to any entity other than a public or private
50 non-profit entity.

51 (e) Participating employers shall report annually to the Department of Family and
52 Medical Leave on: (i) The number of employees participating in the infant-friendly workplace
53 program; (ii) Outcomes, including employee retention rates, absenteeism, and productivity
54 metrics; and (iii) any challenges or successes in implementing the program no later than
55 September 31 of each year.

(f) Employers that implement programs established under section (a) of this chapter shall be eligible for: (i) Tax incentives provided by the Commonwealth to offset costs associated with setting up and maintaining the program; (ii) grants issued by the Executive Office of Labor and Workforce Development for creating infant-friendly environments, purchasing necessary equipment, or establishing collaborations with local childcare centers for supplemental support.

(g) The Department of Family and Medical Leave shall promulgate regulations for the program, including safety standards, implementation guidelines, and reporting requirements.

(h) This act shall take effect 180 days after its passage to allow for the development of regulations and guidelines by the Department of Family and Medical Leave and the Executive Office of Labor and Workforce Development.

SECTION 3: Section 6 of Chapter 175M of the General Laws is hereby amended by inserting the following in subsection after subsection (c)(2):-

(3) For employers participating in the Infant-Friendly Work program, an employer may offer employees a deduction no greater than 10 per cent from that employee's wages to fund and support the establishment and maintenance of the infant-friendly Workplace Program.

SECTION 4: Section 7 of Chapter 175M of the General Laws is hereby amended by inserting the following after the words "General Fund" in subsection (a):-

Infant friendly workplace benefits collected shall be distributed from the fund established under this chapter. The Department of Family and Medical Leave shall oversee the allocation and distribution of funds to participating employers, prioritizing workplaces that demonstrate high need or serve populations with limited childcare access.